UPPER MATTAPONI TRIBE

RESOLUTION NO. 2026-09

AUTHORIZATION OF GILMAN PROPERTY FEE-TO-TRUST APPLICATION

A Resolution to authorize the Chief, or his designee, to submit a Fee-to-Trust Application for the approximate 70.64 acres of fee lands, Parcel ID: 29-13, known as the "Gilman Property".

At a duly called General Meeting of the Upper Mattaponi Tribal Council held this 28th day of March, 2026, the following Resolution and Law were adopted.

WHEREAS, the Upper Mattaponi Tribe ("Tribe") is an Indian Tribe that has existed from time immemorial and is federally recognized on a government-to-government basis by the United States of America under Section 303(a)(1) of the Thomasina E. Jordon Indian Tribes of Virginia Federal Recognition Act of 2017, Public Law No. 115-121 (January 29, 2018) ("Recognition Act"); and

WHEREAS, pursuant to Article VII of the Constitution of the Upper Mattaponi Tribe ("Constitution"), the Upper Mattaponi Tribal Council ("Council") is vested with the legislative power of the Tribe and has the authority to enact laws pursuant to Article VII, Section 4(a) of the Constitution; and

WHEREAS, Section 306(a)(2) of the Recognition Act provides that the Secretary of the Department of the Interior ("Interior") may take any land held in fee by the Tribe within King William County, Caroline County, Hanover County, King and Queen County, and New Kent County, Virginia into trust; and

WHEREAS, the Act of June 18, 1934, Ch. 576, § 5 (48 Stat. 984, 25 U.S.C. § 5108), the Indian Reorganization Act, provides that the Secretary of the Interior may take any land held in fee by the Tribe into trust; and

WHEREAS, the Tribe established its Reservation through the fee-to-trust process on April 14, 2022, with such Reservation currently held in trust by the United States, Department of the Interior, Bureau of Indian Affairs; and

WHEREAS, pursuant to the Trust Land Acquisition Statute of 2024 (Title 42, Chapter 3), the Tribe has established its authority and duty to pursue trust status for Tribal lands; and

WHEREAS, on or about August 13, 2021, the Tribe acquired approximately 70.64 acres of fee lands with improvements thereon, located contiguous to the Tribe's existing Reservation, Parcel ID: 29-13, commonly referred to as the "Gilman Property," and more particularly described as:

"All that certain lot, piece or parcel of land thereon lying and being in Acquinton District, King William County, Virginia, containing 70.64 acres owned by Minnie S. & William H. Walker, recorded June 8, 1978, in the Clerk's Office, Circuit Court, King William County, Virginia, in Plat Book 11, Page 29, to which plat reference is hereby made for a more particular description of the property hereby conveyed.

Being the same property conveyed to William B. Gilman and William Howard Gilman, by Deed from William Howard Walker and Sarah Walker, his wife and Minnie S. Walker, widow, dated February 8, 1993, and recorded February 18, 1993, in the Clerk's Office, Circuit Court, King William County, Virginia, in Deed Book 217, Page 644."

WHEREAS, Section 306(c) of the Recognition Act provides that lands acquired in trust "shall, upon request of the Tribe, be considered part of the reservation of the Tribe;" and

WHEREAS, the Gilman Property has ingress and egress and is adequate for traffic and services; and

WHEREAS, the Tribe plans to continue existing uses of the Gilman Property in support of the Tribe's economic development, agricultural, housing, leasing, permitting, or similar purposes; and

WHEREAS, the Tribe is applying to the Eastern Regional Office of the Bureau of Indian Affairs to request transfer of fee simple title to the United States in Trust for the Upper Mattaponi Tribe; and

WHEREAS, the Tribe believes that acquiring tribal lands furthers the pursuit of Tribal Self Determination and allows future generations of tribal leaders to have flexibility to use the land for health, welfare, and sovereignty of the Upper Mattaponi Tribe; and

WHEREAS, the United States government requires authorization for tribal officials to execute all relevant documents pertaining to a fee to trust acquisition.

NOW THEREFORE BE IT RESOLVED that the Upper Mattaponi Tribe hereby requests that the United States Department of the Interior, Bureau of Indian Affairs acquire the Gilman Property as described herein in trust for the Upper Mattaponi Tribe under the legal authority of Section 306(a)(2) of the Recognition Act, the Act of June 18, 1934, Ch. 576, § 5 (48 Stat. 984, 25 U.S.C. § 5108), the Indian Reorganization Act, and the 25 C.F.R. Part 151 Regulations; and

BE IT FURTHER RESOLVED that the Upper Mattaponi Tribe hereby requests in order to clarify the Gilman Property's status, the United States Department of the Interior, Bureau of Indian Affairs proclaim the Gilman Property as described herein as part of the Tribe's Reservation under the legal

authority of Section 306(c) of the Recognition Act, and the Act of June 18, 1934, Ch. 576, § 7 (48 Stat. 984, 25 U.S.C. § 5110), the Indian Reorganization Act; and

BE IT FINALLY RESOLVED that the Upper Mattaponi Tribe hereby authorizes the Chief of the Upper Mattaponi Tribe to execute documents relevant to the Upper Mattaponi Tribe's fee to trust application for the Gilman Property.

CERTIFICATION

The foregoing Resolution was duly voted upon by the Council on the 28th day of March 2026, at a General Meeting with a vote of 7 in favor and Ø opposed, Ø abstaining, and Ø absent, pursuant to the authority vested in the Council by the Constitution of the Upper Mattaponi Tribe.

Wilma Vicks

Secretary of the Council or Designee

UPPER MATTAPONI TRIBE COUNCIL RESOLUTION NO. 2026-09

SPONSOR: Councilperson K. Adams

COUNCILMEMBERS	YES	NO	ABSTAIN	ABSENT
Ken Adams	✓			
Owen Adams	✓			
Beth Gondos	✓			
Wilma Hicks	✓			
Sonny Knighton	✓			
Connie Lovelace	✓			
Dennis Smith	✓			

ASSISTANT CHIEF (Authorized to break tie votes only): _____

DELIVERY OF THE RESOLUTION AND LAW TO THE CHIEF

Resolution No. 2026-09 was presented to the Chief of the Upper Mattaponi Tribe on the 30th day of March, 2026, pursuant to Article VII, Section 5(f) of the Constitution of the Upper Mattaponi Tribe, and will become effective after signature by the Chief or veto override by the Council.

Wilma Hicks
Secretary of the Council or Designee

CHIEF'S ACTIONS:

☑ Approved

☐ Veto – Returned to Council with Explanation

_____

_____

_____

_____

_____

On this 30th day of March, 2026.

W. Frank Adams
Chief

Presented to Chief and Council on the _____ day of _____, 2026.

COUNCIL'S ACTIONS:

Override of the Chief's Veto –

☐ Yes

☐ No

COUNCILMEMBERS	YES	NO	ABSTAIN	ABSENT
Ken Adams				
Owen Adams				
Beth Gondos				
Wilma Hicks				
Sonny Knighton				
Connie Lovelace				
Dennis Smith				

CERTIFICATION

The foregoing Resolution was duly voted upon by the Council on _____ day of _____, 2026, at a General Meeting with a vote of _____ in favor and _____ opposed, _____ abstaining, and _____ absent, pursuant to the authority vested in the Council by the Constitution of the Upper Mattaponi Tribe.

_____

Secretary of the Council or Designee